

Excavator Foot — Mutual NDA

MUTUAL NON-DISCLOSURE AGREEMENT

Subject Matter: Excavator Foot — Patented Pivot System for Tracked Excavators U.S. Patent Application No.: 18/594,097 **Effective Date:** _____

This Mutual Non-Disclosure Agreement (the “Agreement”) is entered into as of the Effective Date above by and between:

DISCLOSING PARTY: Kable Darren Record d/b/a Excavator Foot Address: _____ Email: info@excavatorfoot.com (“Discloser”)

RECEIVING PARTY: Company Name: _____
Address: _____ Authorized Signatory Name: _____
Title: _____
Email: _____ (“Recipient”)

(Each a “Party” and collectively the “Parties.”)

1. Purpose

The Parties wish to evaluate a potential business relationship relating to the licensing, manufacture, distribution, integration, or commercialization of the Excavator Foot pivot system technology, including U.S. Patent Application No. 18/594,097 and any related continuations, divisionals, foreign counterparts, improvements, and know-how (collectively, the “Technology”). This Agreement governs the disclosure and use of Confidential Information (as defined below) between the Parties for the purpose of evaluating the Technology and any potential transaction relating to it (the “Purpose”).

2. Confidential Information

“Confidential Information” means any non-public information disclosed by one Party (the “Disclosing Party”) to the other Party (the “Receiving Party”) in connection with the Purpose, whether disclosed orally, visually, in writing, electronically, or in any other form, and whether or not marked as confidential, including without limitation:

- a. Technical information: engineering drawings, specifications, dimensions, tolerances, materials, hydraulic schematics, prototypes, test data, performance metrics, manufacturing processes, supplier information, and bills of materials;
- b. Intellectual property: claim charts, prosecution strategy, prior art analysis, continuation plans, trade secrets, and unpublished patent applications;
- c. Business information: pricing, royalty structures, financial projections, market analyses, customer lists, prospect lists, contractor letters of intent, and licensing terms;
- d. Demonstrations: in-person, video, photographic, or live demonstrations of the Technology, including the 302, 305, and 308 prototype assemblies;
- e. Any other information identified as confidential at the time of disclosure or that a reasonable person would consider confidential under the circumstances.

3. Exclusions

Confidential Information does not include information that the Receiving Party can demonstrate by written records:

- a. was already in the Receiving Party's lawful possession without confidentiality obligation prior to disclosure;
- b. is or becomes publicly available through no breach of this Agreement by the Receiving Party;
- c. was independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information; or
- d. is rightfully obtained from a third party who has the right to disclose it without confidentiality obligation.

The fact that general subject matter is publicly known does not make specific Confidential Information public. Information is not deemed publicly available merely because it can be assembled from public sources.

4. Obligations of the Receiving Party

The Receiving Party agrees that it shall:

- a. hold the Confidential Information in strict confidence and protect it with at least the same degree of care it uses to protect its own confidential information of similar importance, but in no event less than a reasonable degree of care;
- b. use the Confidential Information solely for the Purpose and for no other purpose, including without limitation no use for the Receiving Party's own commercial benefit independent of a transaction with the Disclosing Party;
- c. not disclose the Confidential Information to any third party except to those of the Receiving Party's directors, officers, employees, agents, advisors, or affiliates (collectively, "Representatives") who (i) have a bona fide need to know for the Purpose, (ii) have been informed of the confidential nature of the Confidential

Information, and (iii) are bound by written confidentiality obligations no less restrictive than those of this Agreement. The Receiving Party shall be responsible for any breach of this Agreement by its Representatives;

- d. not reverse engineer, disassemble, decompile, simulate, or attempt to derive the underlying design, structure, or function of any prototype, drawing, specification, or other Confidential Information;
- e. not file any patent application, utility model, design registration, or other intellectual property right that incorporates, derives from, or is based on any Confidential Information of the Disclosing Party;
- f. not solicit or hire any contractor, supplier, manufacturer, or other party identified through Confidential Information for the purpose of replicating, manufacturing, or commercializing the Technology outside of a transaction with the Disclosing Party (the “Non-Circumvention Obligation”); and
- g. promptly notify the Disclosing Party upon discovery of any unauthorized disclosure or use of Confidential Information and cooperate in efforts to remedy such unauthorized disclosure or use.

5. No License or Transfer of Rights

Nothing in this Agreement grants the Receiving Party any license, ownership interest, or other right in or to the Technology, the Confidential Information, U.S. Patent Application No. 18/594,097, any continuation thereof, any related patent rights, or any trademarks, trade secrets, or copyrights of the Disclosing Party, except the limited right to use Confidential Information for the Purpose during the term of this Agreement. All rights are expressly reserved by the Disclosing Party.

6. No Obligation to Proceed

Neither Party is obligated by this Agreement to enter into any further agreement or business relationship. Either Party may terminate evaluation discussions at any time and for any reason, without liability, subject only to the surviving obligations of confidentiality set forth herein.

7. Return or Destruction

Upon written request by the Disclosing Party at any time, or upon termination of evaluation discussions, the Receiving Party shall, within thirty (30) days, return to the Disclosing Party or destroy all Confidential Information in its possession, including all copies, notes, summaries, and derivatives, and certify such return or destruction in writing. The Receiving Party may retain one (1) archival copy in legal counsel files solely for the purpose of monitoring its surviving obligations under this Agreement.

8. Term

The term of this Agreement is five (5) years from the Effective Date. The Receiving Party's obligations under Section 4 (Obligations of the Receiving Party) shall survive termination of this Agreement for a period of seven (7) years from the Effective Date. The Non-Circumvention Obligation in Section 4(f) shall survive for the longer of (i) seven (7) years from the Effective Date or (ii) the date the Disclosing Party publicly commercializes the Technology. Trade secrets disclosed under this Agreement shall remain protected for as long as they qualify as trade secrets under applicable law.

9. Required Disclosure

If the Receiving Party is required by law, court order, or governmental authority to disclose Confidential Information, it shall, to the extent legally permitted: (a) provide the Disclosing Party with prompt written notice prior to disclosure, (b) cooperate with the Disclosing Party at the Disclosing Party's expense in any effort to seek a protective order or other remedy, and (c) disclose only the minimum portion of Confidential Information legally required.

10. No Warranty

All Confidential Information is provided "AS IS." The Disclosing Party makes no representation or warranty, express or implied, regarding the accuracy, completeness, or fitness for any purpose of the Confidential Information. The Receiving Party assumes all risk associated with use of and reliance on the Confidential Information.

11. Equitable Relief

The Parties acknowledge that breach of this Agreement may cause irreparable harm for which monetary damages would be inadequate. The Disclosing Party shall be entitled to seek injunctive relief and specific performance, in addition to all other remedies available at law or in equity, without the requirement to post a bond.

12. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of Arizona, without regard to its conflict-of-laws principles. Any dispute arising out of or relating to this Agreement shall be subject to the exclusive jurisdiction of the state and federal courts located in Maricopa County, Arizona, and each Party consents to personal jurisdiction in such courts.

13. Entire Agreement; Amendment

This Agreement constitutes the entire agreement between the Parties regarding the subject matter and supersedes all prior or contemporaneous communications, whether oral or written. This Agreement may be amended only by a written instrument signed by

both Parties.

14. Severability

If any provision of this Agreement is held to be unenforceable, the remaining provisions shall remain in full force and effect, and the unenforceable provision shall be modified to the minimum extent necessary to make it enforceable while preserving its intent.

15. Counterparts; Electronic Signatures

This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one instrument. Electronic signatures and PDF copies shall have the same legal effect as original signatures.

SIGNATURES

DISCLOSING PARTY:

Kable Darren Record d/b/a Excavator Foot

Signature: _____

Print Name: Kable Darren Record

Title: Inventor / Owner

Date: _____

RECEIVING PARTY:

Company: _____

Signature: _____

Print Name: _____

Title: _____

Date: _____

This document is a template for non-disclosure between the Disclosing Party and a prospective evaluator of the Excavator Foot technology. This is not legal advice. Both Parties are advised to have this Agreement reviewed by their own legal counsel before execution.